

Calendar Line 3

Case Name: *Ravi Vou v. County of Santa Clara*

Case No.: 25CV463523

Before the Court is Defendant County of Santa Clara's ("Defendant" or the "County") demurrer to the Second Amended Complaint ("SAC") filed by Plaintiff Ravi Vou ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

According to the allegations of the SAC, Plaintiff was hired by Defendant as a Hospital Services Assistant. (SAC, ¶ 14.) On or around October 9, 2021, Plaintiff was involved in a work-related accident where she fell and injured herself at St. Louise Regional Hospital ("the Hospital"), owned and operated by Defendant. (*Ibid.*) The injuries resulted in cervical disc disorder, strain or muscle, fascia and tendon of lower back, rotator cuff tear, and rupture of right shoulder. (*Ibid.*) Plaintiff was thereafter restricted from lifting or pulling more than 10 pounds and her restrictions were presented to the County.

On or around December 22, 2021, the County approved Plaintiff for modified duty for 12 weeks. (SAC, ¶ 15.) The modified duty required her to essentially perform the same functions as when she was healthy and she was able to perform these essential functions. (*Ibid.*) However, before the 12-week period ended, on or around February 9, 2022, the County terminated her modified duty and informed her it could not accommodate her further until she was cleared for full duty without restrictions. (*Id.*, ¶ 16.) The day before the modified duty was terminated, Plaintiff was involved in an incident where she was assigned to make sure a patient did not get out of bed and was instructed to call for help when the patient got out of bed. (*Ibid.*) Plaintiff called for help when the patient got out of bed, but nobody came to help her. (*Ibid.*) Plaintiff was hurt when the patient put his leg on her. (*Id.*, ¶ 17) Thereafter, the County terminated any further accommodation for Plaintiff. (*Id.* ¶ 17.) Plaintiff was told to stay home without pay. (*Id.* at ¶ 22.)

Plaintiff continued to have the same physical restrictions and communicated these to the County, but the County refused to engage in an interactive process or accommodate her restrictions. (SAC, ¶¶ 23-24.) The County did not allow Plaintiff to return to work despite having modified work available. (*Id.*, ¶ 24.) Instead, the County chose to place her on an involuntary leave of absence. (*Ibid.*)

On January 5, 2024, the County notified Plaintiff that it was unable to accommodate her work restrictions, that her two-year absence from the department was a hardship, and if she was unable to return to work, she may be eligible for disability retirement. (SAC, ¶ 26.) She was asked to complete and update her job application for the County so she could either find a new job or go into disability retirement. (*Ibid.*)

On January 16, 2024, Plaintiff completed and submitted the County job application and received no response. (SAC, ¶ 27.) Thereafter, Plaintiff's manager advised her to find a job outside of the County because the County had no jobs to accommodate her restrictions, (*Id.*, ¶ 28.)

On July 23, 2024, the County again notified Plaintiff that they could not accommodate her restrictions and requested that she provide information regarding her ability to return to

work, or decision on a disability retirement, no later than July 29, 2024, or else the County would assume she had resigned. (SAC, ¶ 29.) That is, the County threatened Plaintiff with involuntary discharge or termination if she failed to return to work with no restrictions or if she refused to go into early disability retirement by July 29, 2024. (*Id.*, ¶ 30.) Because she was not able to return to work with no restrictions and refused to take early disability retirement by July 29, 2024, the County effectively terminated her employment. (*Ibid.*)

On October 11, 2024, the County's Labor Relations team contacted Plaintiff again about her disability retirement status and whether she had applied to CalPERS for benefits, confirming its decision to terminate her employment because of her disability status. (SAC, ¶ 31.)

Plaintiff initiated this action on April 15, 2025, for violations of the Fair Employment and Housing Act ("FEHA"), and filed a First Amended Complaint ("FAC") asserting claims for: (1) disability discrimination; (2) failure to provide reasonable accommodations; and (3) failure to engage in interactive process. Defendant subsequently demurred to each of the claims asserted in the FAC on the ground of failure to state facts sufficient to constitute a cause of action. On December 19, 2025, the Court sustained the demurrer with leave to amend as to the second and third causes of action and overruled the demurrer as to the first cause of action.

Plaintiff filed the operative SAC on December 30, 2025, which asserts the same claims as the FAC. On February 2, 2026, Defendant filed the instant demurrer to the second and third causes of action on the ground of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff opposes the motion.

As explained in the Court's order on the preceding demurrer to the FAC, "The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff's disability." (*Wilson v. County of Orange* (2009) 169 Cal.App.4th 1185, 1192.) "Two principles underlie a cause of action for failure to provide a reasonable accommodation. First, the employee must request an accommodation. Second, the parties must engage in an interactive process regarding the requested accommodation and, if the process fails, responsibility for the failure rests with the party who failed to participate in good faith. While a claim of failure to accommodate is independent of a cause of action for failure to engage in an interactive dialogue, each necessarily implicates the other." (*Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54 (*Gelfo*).)

Previously, the Court sustained Defendant's demurrer to this claim as pleaded in the FAC because it found, based on what was alleged in the pleading, that Defendant *had* made attempts to reasonably accommodate Plaintiff's disability. This included allegations that Plaintiff received an accommodation when she was placed on a modified work program and again when she was placed on leave until it became a burden to the County. (See FAC, ¶¶ 15, 19, 22.)

In the instant demurrer, Defendant asserts that this claim remains insufficient as a matter of law because Plaintiff still has not identified a reasonable accommodation that the County failed to provide. Plaintiff counters that she has alleged three failures to accommodate: (1) coworkers did not respond quickly enough when she needed help moving a patient while

she was participating in the County Temporary Modified Return to Work Program; (2) the County placed her on leave after she was injured while working under that temporary modified-duty arrangement; and (3) the County did not later return her to work under the same modified-duty arrangement with continued assistance when moving and transporting patients. Ultimately, the Court agrees with Defendant.

With respect to the first purported failure, it occurred while Plaintiff was already being accommodated by being placed in a temporary modified-duty assignment. The Court is not aware of any authority which provides that a single alleged incident where Plaintiff was not assisted quickly enough nullifies the fact that the County already placed her in modified work as an accommodation. As Defendant notes, Plaintiff submits no authority which supports the notion that such an incident converts an *ongoing* accommodation into a denial of accommodation. Thus, the Court agrees with the County that this purported incident does not, without more, demonstrate a failure to accommodate.

Turning to the second alleged failure, Plaintiff challenges Defendant's decision to place her on leave after she was injured while working under the temporary modified-duty assignment. But as the Court already discussed in its prior order (see Order at fn. 2), while it is true, as Plaintiff maintains, that "[a]n employer cannot require a leave of absence when an employee can work with a reasonable accommodation other than a leave of absence," here Plaintiff was placed on leave *after* the second injury occurred, and the SAC does not materially alter this fact, as Plaintiff has merely added conclusions that the County should have continued providing assistance when moving and transporting patients. Plaintiff's reliance on *Wallace v. County of Stanislaus* (2016) 245 Cal.App.4th 109 and Title 2 Cal. Code Regs. § 11068 do not assist her because they address situations where an employee can work with a reasonable accommodation *other than* leave. They do not require an employer to continue temporary modified duty indefinitely, provide an accommodation that creates undue hardship, provide the employee's preferred accommodation, or maintain a temporary arrangement after it has proven unworkable. Plaintiff has not identified, aside from the temporary modified duty assignment that she was provided, other reasonable accommodations which were available that would not have unduly burdened the County or other employees.

Finally, Plaintiff argues that "[w]hile she was out, she continued to make efforts to seek accommodations and come back to work" and that the County "refused to extend that accommodation." (Opp. at 6-7). But not only has she not identified these efforts with any detail (see below), the County was not legally obligated to convert a temporary light-duty assignment into a permanent position or indefinitely provide the specific accommodation requested by her. (See *Raine v. City of Burbank* (2006) 135 Cal.App.4th 1215, 1227-1228.) Plaintiff notably does not address this legal precedent, and thus impliedly concedes the merits of the County's argument. She also fails to plead facts which show that extension of the *temporary* modified work program she was placed in would be a reasonable *permanent* accommodation by the County. Thus, this is insufficient to plead a failure to accommodate.

Given the foregoing, Plaintiff's second cause of action is still defective. Accordingly, Defendant's demurrer to this claim on the ground of failure to state fact sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Turning to the third cause of action, FEHA makes it unlawful for an employer "to fail to engage in a timely, good faith, interactive process with the employee or applicant to

determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical ... disability. . (*Claudio v. Regents of University of California*, *supra*, 134 Cal.App.4th at 243.)” (*Gelfo*, *supra*, 140 Cal.App.4th at 61.) The employee has the burden of engaging in the interactive process and suggesting reasonable accommodations to her employer. (See *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1018 [“To prevail on a claim under section 12940, subdivision (n) for failure to engage in the interactive process, an employee must identify a reasonable accommodation that would have been available at the time the interactive process should have occurred.”].)

The demurrer to this claim as alleged in the FAC was sustained based on Plaintiff’s failure to allege a reasonable accommodation that was available to her but not provided by Defendant. The Court explained that the FAC was “devoid of allegations that Plaintiff engaged in efforts to communicate with Defendant regarding reasonable accommodations” and thus she failed to sufficiently allege failure to engage in the interactive process. (December 19, 2025 Court Order on Demurrer to FAC at 11:17-18.)

Defendant maintains that this claim still suffers from this same defect. It explains that Plaintiff has admitted that she made no effort to engage in the interactive process because, as reflected in the allegations of the SAC and prior iterations of the complaint, after being placed on leave on February 9, 2022, she remained absent until the County- not Plaintiff- reached out with a letter on January 5, 2024. (SAC, ¶¶ 16, 26, 27.) Plaintiff was provided with an opportunity to amend, but does not allege that she reached out to the County during the two-year period. She concedes in the SAC that the County reached out to her during her leave of absence at least on January 5, 2024 (*id.* ¶ 26), July 23, 2024 (*id.* ¶ 29), and October 11, 2024 (*id.* ¶ 31), but there are *no* allegations that Plaintiff responded to any of these communications or otherwise initiated an interactive discussion with the County in which she proposed a reasonable accommodation that existed beyond the Temporary Modified Return to Work Program in which she already participated. While Plaintiff alleges she submitted a job application to the County, she notably does not identify a vacant position at her same level that she could perform. (SAC, ¶ 27.)

Plaintiff cites paragraphs 23 and 24 as correcting this deficiency in her failure to engage cause of action, which assert that after being placed on leave, she “continued to inform” the County of her restrictions, “communicated” that she wanted to return with assistance moving patients, and made “continuing requests” to return. But these generalized allegations merely restate her previous generic allegation that she “continued to inform the County about her restrictions,” which the Court has *already* found insufficient. (*Ibid.*) Further, no specifics are offered regarding *when* these communications took place, to whom they were made and what they consisted of such that there is nothing pleaded in the SAC which shows that Plaintiff initiated or participated in the interactive process with the County during her two-year absence from work. Thus, this claim is still defective because Plaintiff fails to plead facts showing she engaged in the interactive process. Consequently, Defendant’s demurrer to the third cause of action on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

The Court will prepare the final order.

Calendar Line 6

Case Name: *Capital One, N.A. v. Wright*

Case No.: 26CV484320

BACKGROUND

Plaintiff Capital One, N.A. (“Plaintiff”) brings this action for breach of contract against Defendant Kathie Wright (“Defendant”) with regards to a credit card account. Plaintiff alleges “Defendant failed to make payments on the contract as agreed, and despite Plaintiff’s demand, Defendant continues to refuse to pay Plaintiff in the amount owed under the contract.” (Complaint at p. 3.) Defendant is in default and the unpaid balance owed is \$6,051.39. (*Ibid.*)

Defendant moves to arbitrate these claims based on the Cardmember Agreement (“the Agreement”). Having reviewed the Agreement, the unopposed motion is GRANTED.

LEGAL STANDARD

Defendant maintains the Federal Arbitration Act (“FAA”) governs the Agreement. The Agreement provides, “[t]his arbitration agreement is governed by the Federal Arbitration Act (‘FAA’).” (Mtn. to Compel Arbitration, Ex. A at p. 3.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

ANALYSIS

There is a Valid Agreement to Arbitrate

A valid agreement to arbitrate exists between the parties. The moving party bears the burden of producing prima facie evidence of an agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [internal citations and quotations omitted].) Here, Defendant has attached a copy of the Cardmember Agreement containing the arbitration clause as an exhibit to her motion. (Mtn. to Compel Arbitration, Ex. A.) Although the Agreement does not bear any signatures by either party, “it is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an *agreement* to arbitrate which matters.” (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 361 [emphasis in original].) In this instance, the memorialized terms of arbitration in the Cardmember Agreement are evidence of an agreement to arbitrate. Additionally, Plaintiff’s effort to enforce the Agreement is evidence of her intent to be bound by its terms. (*Serafin v. Balco Properties, LLC* (2015) 235 Cal.App.4th 165, 176 [“Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement can be based, for example on conduct from which one could imply either ratification or implied